

23VECV05369 23VECV05369

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Case Number: 23VECV05369 Hearing Date: August 31, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

OSMAN HERNANDEZ and ROSA OLIVA on their own and behalf of JEFFREY HERNANDEZ,

Plaintiff,

vs.

VALLEY PRESBYTERIAN HOSPITAL, a California corporation; ZEPYUR N. DISHIGRIKIAN, an individual; KEVIN N. TEEHEE, an individual; JONATHAN P. LYONS, an individual; BRIAN OSTICK, an individual; LOS ANGELES CITY FIRE DEPARTMENT, a public entity; and DOES 1 – 50, inclusive.

Defendants.

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CASE NO.: 23VECV05369

ORDER GRANTING PLAINTIFFS' MOTION FOR LEAVE TO AMEND

I. BACKGROUND

Plaintiffs Osman Hernandez and Rosa Oliva ("Plaintiffs") and parents of Jeffrey Hernandez ("Decedent") bring this medical negligence action against Defendants Valley Presbyterian Hospital ("Valley Presbyterian"), Zepyr N. Dishigrikian

("Dishigrikian"), Kevin N. Teehee ("Dr. Teehee"), Jonathan P. Lyons ("Dr. Lyons"), Brian Ostick ("Dr. Ostick"), and Los Angeles City Fire Department ("LAFD").

Plaintiffs allege Dishigrikian discharged Decedent on November 21, 2022, after he presented with symptoms. Plaintiffs allege on November 22, 2026, Decedent presented to his primary care physician, Dr. Kim, who instructed him to go to the emergency room. Plaintiffs allege Dr. Teehee ignored Dr. Kim's referral for an evaluation for sepsis and encephalitis. Plaintiffs allege on November 23, 2022, Decedent collapsed and LAFD delayed his transport to the emergency room. Plaintiffs allege when Decedent was finally admitted, Dr. Ostick examined him. Plaintiffs allege Valley Presbyterian told them Decedent could not be treated at their hospital. Decedent was transported to UCLA Medical Center where he passed away.

Plaintiffs bring their claims on their own behalf under Code of Civil Procedure § 377.60 and as successors in interest to the Decedent, under Code of Civil Procedure § 377.30. On April 1, 2026, Plaintiffs dismissed Dishigrikian, Dr. Lyons, and Dr. Ostick.

Plaintiffs seek leave to file a First Amended Complaint.

II. PROCEDURAL HISTORY

On December 4, 2023, Plaintiffs filed a Complaint alleging, (1) Medical Negligence – Wrongful Death and (2) Negligence.

On January 11, 2024, Valley Hospital filed an Answer.

On June 6, 2024, Dr. Teehee, Dishigrikian, Dr. Lyons, and Dr. Ostick filed an Answer.

On April 1, 2026, Plaintiffs dismissed Dishigrikian, Dr. Lyons, and Dr. Ostick.

On April 9, 2026, Plaintiff filed an Amendment to Complaint, designating Richard Alberts as Doe 1.

On May 8, 2026, the Court denied Dr. Teehee's Motion for Summary Judgment.

On August 3, 2026, Plaintiffs filed the instant Motion.

On August 18, 2026, Valley Presbyterian filed an Opposition and Dr. Teehee filed a Notice of Joinder.

On August 24, 2026, Plaintiffs filed a Reply.

Trial is scheduled for October 12, 2026.

III. LEGAL STANDARD

Code of Civil Procedure § 473(a) [1] provides: "The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code." (Code Civ. Proc. § 473(a)(1); see also Code Civ. Proc. § 576.)

The court has broad discretion to permit amendments to pleadings, and “the court’s discretion will usually be exercised liberally to permit amendment of the pleadings.” (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) “The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified.” (Id.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend.” (Morgan v. Superior Court (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.) Further, a court does not abuse its discretion in denying leave to amend where the proposed pleading fails to state a cause of action and further amendment would be “futile.” (Foxborough v. Van Atta (1994) 26 Cal.App.4th 217, 230-231.)

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A motion for leave to amend a pleading must comply with the procedural requirements of Rules of Court, rule 3.1324, under which the motion must include (1) a copy of the proposed and numbered amendment, (2) specifications by reference to pages and lines the allegations that would be deleted and added, and (3) a declaration specifying the effect, necessity and propriety of the amendments, date of discovery and reasons for delay. (See Rules of Court, rule 3.1324(a), (b).)

IV. ANALYSIS

Plaintiffs seek leave to amend to (1) separate the legally distinct wrongful death and survival claims and corresponding damages, which are currently combined under the first cause of action and (2) delete the second cause of action against LAFD to remove them from this action. (See Mot. at 815-25, citing Ng v. Superior Court (2025) 108 Cal.App.5th 382, 386-87 [A wrongful-death claim and a survival claim stemming from the same alleged incident of medical malpractice are separate claims such that they are entitled to separate caps on noneconomic damages under the Medical Injury Compensation Reform Act (MICRA)].) Plaintiffs contend Defendants will suffer no prejudice as the proposed amendments plead no new facts, add new parties, or waste discovery. (See Mot. at 16:10-24.)

Valley Presbyterian and Dr. Teehee, by joinder, (jointly, “Defendants”) argue they will (1) suffer undue prejudice as Plaintiffs’ delayed proposed FAC adds a new survival cause of action with corresponding damages of up to \$470,000, which was not previously pled, and a direct corporate liability theory at paragraphs 30 and 36, which is not proven on the discovery conducted thus far and (2) the survival claim is futile as it does not relate back and is time-barred under §§ 377.34(b) and 340.5.[2] (See id., at 1:8-22, 2:21-3:8, 5:20-26, 7:20-26, 11:6-10 citing Quiroz v. Seventh Ave. Center (2006) 140 Cal.App.4th 1256, 1277-78 [survivor claim first pled in amended complaint filed after the then applicable one-year limitations period was time-barred; survivor claim pleaded a different injury than the initial complaint such that it did not relate back].) Defendants do not oppose housekeeping amendments or dismissal of LAFD but contend Plaintiffs do not leave to amend to dismiss this party. (See id., at 1:23-25, 13:14-20.) Defendants point out that deadlines for summary judgment and expert discovery have passed, and discovery cutoff date is imminent. (See Opp. at 3:11-24, 6:19-7:3.) Defendants argue the only solution is to continue the trial date and related deadlines which warrants denial of the Motion. (See id., at 7:6-11 citing Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 488.) Defendants also argue Plaintiffs delayed in seeking leave to amend whereas here they had knowledge of facts giving rise to the amendment and Ng was decided on January 29, 2025. (See id. at 8:14-22.)

Defendants further argue the supporting declaration does not satisfy rule 3.1324(b)(3)-(4). (See id., at 9:16-17.) Finally, Defendants contend if leave is granted the Court should preserve all statute of limitations and relation back defenses and continue the FSC, trial, and related dates to allow for discovery and expert designation. (See id., at 14:1-14.)

Plaintiffs argue the Complaint pled the survival claim at paragraphs 27 and 31 and prayed for pain and suffering damages on all causes of action, thus Quiroz is inapplicable. (See Reply at 2:9-27, 5:3-13.) Plaintiffs cite Quelimane Co. v. Stewart Title Guaranty Co. (1998) 19 Cal.4th 26, 38–39, for the proposition that it is of no import that the captioned first cause of action is for wrongful death where Plaintiffs also pled their survival claim. (See Reply at 4: 13-20.) Plaintiffs argue futility is to be resolved on demurrer. (See id., at 6:7-10.) Plaintiffs also argue the corporate liability theory at proposed paragraphs 30 and 36 is already pled in the Complaint at paragraphs 22-24, 26, and 28. (See id., at 8:4-12.) Finally, Plaintiffs contend they did not delay in seeking leave to amend and comply with rule 3.1324(b). (See id., at 9:7-19.)

The Court will grant the Motion. First, the Motion and supporting declaration substantially comply with the procedural requirements at rule 3.1324. Plaintiffs attach a copy of the proposed FAC and redlined copy in compliance with rule 3.1324(a). (See Declaration of James K. Beck filed August 3, 2026, ¶¶ 14-15, Exs. A-B.) The supporting declaration complies with rule 3.1324(b)(3)-(4) as counsel attests he learned of the Ng decision on July 20, 2026, which is why he did not make his request sooner. (See id., ¶¶ 12-13.)

Second, the Court finds Defendants would suffer prejudice based on the proposed alleged theory of direct corporate liability, but not due to any other proposed amendment. The Court agrees with Plaintiffs that Decedent's parents assert a wrongful death claim and a survival claim on behalf of Decedent as his successors in interest in their Complaint. (See Compl., ¶¶ 27, 30-31, 33.) Thus, the Court finds the proposed amendments in connection with the survival claim are not a substantive amendment that would cause Defendants prejudice.

However, the Court agrees with Defendants that the proposed FAC newly alleges a direct corporate liability theory at paragraphs 30 and 36, which cannot be proven on the discovery conducted thus far and would require further discovery. The Court disagrees with Plaintiffs' argument that the operative paragraphs 22-24, 26, and 28 allege corporate liability. Upon reviewing these allegations, the Court finds they concern the care of medical professionals at Valley Presbyterian and do not assert any allegations supporting direct liability against Valley Presbyterian as a separate entity unto itself based on its negligent failure to adopt or implement policies or protocols. Allowing this proposed amendment would prejudice Defendants in that the trial date, which is currently scheduled for October 12, 2026, may have to be continued to allow the parties time to conduct discovery on this issue. Further, the parties agree that this prejudice can be mitigated by reopening expert designation as to hospital administration, emergency department operations, and pediatric sepsis protocol issues. While Defendants would incur an increased burden in discovery on a newly alleged theory, having to engage in discovery practice is a basic feature of litigation, not proof of actual prejudice. Additionally, this Motion is not brought on the eve of trial, the Court can continue the trial date to allow the parties to conduct necessary discovery if appropriate.

Based on the foregoing and the liberal policy favoring amendment, the Court GRANTS Plaintiff's Motion for Leave to Amend.

V. CONCLUSION

Based on the foregoing, the Court GRANTS Plaintiff's Motion for Leave to Amend. Plaintiffs are directed to file their proposed amended complaint by no later than September 3, 2026.

In addition, the Court notes that an individual defendant, Richard Alberts, has not yet been served with process despite the fact he was added as a defendant four months ago. As a result, the Court vacates the Final Status Conference and Trial dates all deadlines associated with those dates will be reset once the Court sets a new trial date. Instead, the Court will set an Order to Show Cause re: Sanctions for Failure to Timely Serve Process in the amount of \$150.00 pursuant to Rule of Court, rule 3.110 for October 2, 2026, at 8:30 a.m. The Court also sets the matter for a Trial Setting Conference on October 2, 2026, at 8:30 a.m. The parties are ordered to file a Joint Status Update by no later than September 24, 2026.

IT IS SO ORDERED.

DATED: August 31, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] "In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for the commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first." (Code Civ. Proc. § 340.5.) "Notwithstanding subdivision (a), in an action or proceeding by a decedent's personal representative or successor in interest on the decedent's cause of action, the damages recoverable may include damages for pain, suffering, or disfigurement if the action or proceeding was...filed on or after January 1, 2022, and before January 1, 2026." (Id., § 377.34(b).)